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JUDGMENT SHEET
LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
JUDICIAL DEPARTMENT

Civil Revision No. 579 of 2020
(Muhammad Shafi v. Noor Nabi)

JUDGMENT

Date of Hearing	15.6.2020
Petitioner by:	Ch. Muhammad Jamil, Advocate.
Respondent by:	Ch. Sajid Mehmood Kahloon, Advocate.

Tariq Saleem Sheikh, J. –This revision petition under Section 115 CPC is directed against judgment dated 9.3.2020 passed by the learned Additional District Judge, Karor, District Layyah.

2. Brief facts of the case are that the Petitioner/Plaintiff instituted a suit against the Respondent/Defendant for specific performance of agreement dated 7.4.2017 regarding land measuring 10 acres comprised in Khata No.53 situated in Chak No.92/ML, Tehsil Karor, District Layyah (the “Property”). Alongwith the plaint he also filed an application under Order XXXIX Rule 1 & 2 CPC for temporary injunction. The Respondent/Defendant contested the suit as well as the said application. The learned Civil Judge, Karor, dismissed the application for temporary injunction vide order dated 14.1.2020. The Petitioner/Plaintiff preferred an appeal thereagainst but the learned Additional District Judge, Karor, dismissed it vide judgment dated 9.3.2020. Hence, this revision petition.

3. The learned counsel for the Petitioner contended that the parties entered into agreement dated 7.4.2017 with their free will. The Petitioner paid the entire sale consideration of Rs.60,00,000/- to the Respondent whereupon he handed over the possession of the Property to him. The learned counsel further contended that the Respondent intended to alienate the Property and if he was not restrained from

doing so it would cause irreparable loss to the Petitioner. The learned courts below had committed material irregularity by refusing to grant temporary injunction.

4. The learned counsel for the Respondent vehemently opposed this petition. He contended that the Respondent neither executed agreement dated 7.4.2017 nor received Rs.60,00,000/- from the Petitioner. He maintained that the said agreement was fabricated and did not create any right in his favour which could be enforced through the suit which he had filed before the Civil Court. He prayed for dismissal of this petition.

5. Arguments heard. Record perused.

6. The claim of the Petitioner is based on a written agreement. According to him, the Respondent has received a huge sum of Rs.60,00,000/- thereunder and in consideration thereof he has delivered possession of the Property to him. The Respondent denies execution of the said agreement and receipt of any money but admits that the possession of the Property is with the Petitioner. His stance is that he is his tenant but has not placed any material on record to substantiate it. In the circumstances, *prima facie*, the Petitioner has a good arguable case. He would suffer irreparable loss if temporary injunction is not issued. Balance of convenience also tilts in his favour. In **Mian Muhammad Latif v. Province of West Pakistan through the Deputy Commissioner, Khairpur and another** (PLD 1970 SC 180), the Hon'ble Supreme Court of Pakistan held:

“It is needless to mention that in a case where temporary injunction is claimed, the Plaintiff has only to make out that he has a good *prima facie* case meaning thereby that a serious question is to be tried in the suit and that in the event of success if the injunction is not issued he will suffer irreparable injury.”

7. In **Mst. Fatima Bibi and others v. Mst. Sakina Bibi and others** (2002 SCMR 1417), the apex Court observed:

“It is the claim of the petitioners that they were in actual physical possession of the suit land wherein they had established a brick-kiln which was in operation. We have not found it possible for us to hold the said claim of the petitioners to be untenable, at least

prima facie. In this view of the matter any effort to dispossess the petitioners from the suit land or any alienation on the part of the respondents would only complicate things which might even lead to multiplicity of proceedings, civil and even criminal. The balance of convenience is thus in favour of the petitioners/plaintiffs and the refusal of protection to the parties during the pendency of the suit in question could lead to irreparable loss.”

8. In view of the foregoing, this petition is **allowed** and the impugned orders are set aside. Resultantly, the Petitioner’s application under Order XXXIX Rule 1 & 2 CPC is accepted and the parties are directed to maintain status quo in respect of the Property till the final decision of the suit.

(Tariq Saleem Sheikh)
Judge